

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ABDOU SALAM SAVADOGO,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE CITY OF NEW
YORK COMPTROLLER, NEW YORK CITY
POLICE DEPARTMENT and ORLANDO R.
CHECO,

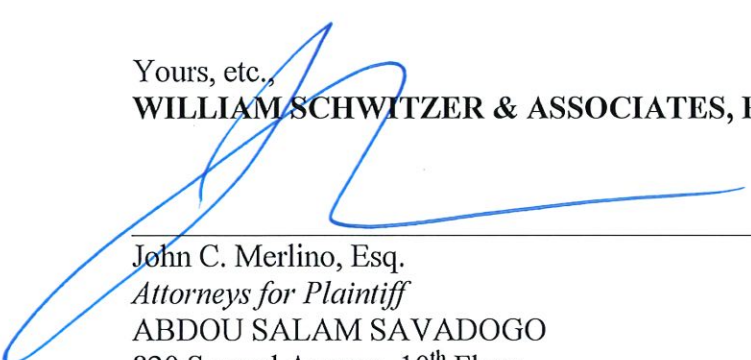
Defendants.
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To the above-named Defendants

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the services of this summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
November 7, 2024

Yours, etc.,
WILLIAM SCHWITZER & ASSOCIATES, P.C.



John C. Merlino, Esq.
Attorneys for Plaintiff
ABDOU SALAM SAVADOGO
820 Second Avenue, 10th Floor
New York, New York 10017
(212) 683-3800
File No.: SMSC24-001

TO:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE CITY OF NEW YORK COMPTROLLER
One Centre Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
One Centre Street
New York, New York 10007

ORLANDO R. CHECO
1 Lefrak City Plaza
Queens, New York 11368

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.:

ABDOU SALAM SAVADOGO,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE CITY OF NEW
YORK COMPTROLLER, NEW YORK CITY
POLICE DEPARTMENT and ORLANDO R.
CHECO,

Defendants.

-----X

Plaintiff, ABDOU SALAM SAVADOGO, by his attorneys, WILLIAM SCHWITZER &
ASSOCIATES, P.C., as and for a cause of action alleges upon information and belief as follows:

1. At all the times herein mentioned, Plaintiff, **ABDOU SALAM SAVADOGO**, was and still is a resident of the County of Westchester, City and State of New York.
2. At all the times herein mentioned, Plaintiff, **ABDOU SALAM SAVADOGO**, was the operator of the motor vehicle bearing New York State registration number 213BE3.
3. At all the times herein mentioned, Plaintiff, **ABDOU SALAM SAVADOGO**, was the owner of the motor vehicle bearing New York State registration number 213BE3.
4. That at all of the times hereinafter mentioned, Defendant, **ORLANDO R. CHECO**, was and still is a resident of the County of Queens, City and State of New York.
5. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.
6. That on or about January 30, 2024, a Notice of Claim was served on the Defendant, **THE CITY OF NEW YORK**, prior to the commencement of this action.

7. That on or about January 30, 2024, Plaintiff, **ABDOU SALAM SAVADOGO**, herein duly presented in writing to the Defendant, **THE CITY OF NEW YORK**, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

8. That more than thirty (30) days have elapsed since the said Notice of Claim was served upon the Defendant, **THE CITY OF NEW YORK**, and the Defendant has failed and refused to make an adjustment of any claim herein set forth.

9. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **THE CITY OF NEW YORK COMPTROLLER**, was a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.

10. That on or about January 25, 2024, a Notice of Claim was served on the Defendant, **THE CITY OF NEW YORK COMPTROLLER**, prior to the commencement of this action.

11. That on or about January 25, 2024, Plaintiff, **ABDOU SALAM SAVADOGO**, herein duly presented in writing to the Defendant, **THE CITY OF NEW YORK COMPTROLLER**, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

12. That more than thirty (30) days have elapsed since the said Notice of Claim was served upon the Defendant, **THE CITY OF NEW YORK COMPTROLLER**, and the Defendant has failed and refused to make an adjustment of any claim herein set forth.

13. That at all of the times hereinafter mentioned, and upon information and belief, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.

14. That on or about January 25, 2024, a Notice of Claim was served on the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, prior to the commencement of this action.

15. That on or about January 25, 2024, Plaintiff, **ABDOU SALAM SAVADOGO**, herein duly presented in writing to the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.

16. That more than thirty (30) days have elapsed since the said Notice of Claim was served upon the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, and the Defendant has failed and refused to make an adjustment of any claim herein set forth.

17. A hearing pursuant to section 50-h of the General Municipal Law was held.

18. That all conditions precedent to the bringing of this action has been complied with.

19. That this action is within one (1) year and ninety (90) days after the accrual of the cause of action herein.

20. That at all times hereinafter alleged, and upon information and belief, the Defendant, **THE CITY OF NEW YORK**, owned the motor vehicle bearing New York State registration number HFE6052.

21. That at all times hereinafter alleged, and upon information and belief, the Defendant, **THE CITY OF NEW YORK**, was a lessor of the motor vehicle bearing New York State registration number HFE6052.

22. That at all times hereinafter alleged, and upon information and belief, the Defendant, **THE CITY OF NEW YORK**, was a lessee of the motor vehicle bearing New York State registration number HFE6052.

23. That at all times hereinafter alleged, and upon information and belief, the Defendant, **THE CITY OF NEW YORK COMPTROLLER**, owned the motor vehicle bearing New York State registration number HFE6052.

24. That at all times hereinafter alleged, and upon information and belief, the Defendant, **THE CITY OF NEW YORK COMPTROLLER**, was a lessor of the motor vehicle bearing New York State registration number HFE6052.

25. That at all times hereinafter alleged, and upon information and belief, the Defendant, **THE CITY OF NEW YORK COMPTROLLER**, was a lessee of the motor vehicle bearing New York State registration number HFE6052.

26. That at all times hereinafter alleged, and upon information and belief, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, owned the motor vehicle bearing New York State registration number HFE6052.

27. That at all times hereinafter alleged, and upon information and belief, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was a lessor of the motor vehicle bearing New York State registration number HFE6052.

28. That at all times hereinafter alleged, and upon information and belief, the Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was a lessee of the motor vehicle bearing New York State registration number HFE6052.

29. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, operated the motor vehicle bearing New York State registration number HFE6052.

30. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, maintained the motor vehicle bearing New York State registration number HFE6052.

31. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, managed the motor vehicle bearing New York State registration number

HFE6052.

32. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, controlled the motor vehicle bearing New York State registration number HFE6052.

33. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, was employed by Defendant, **THE CITY OF NEW YORK**.

34. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, operated the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **THE CITY OF NEW YORK**.

35. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, operated the motor vehicle bearing New York State registration number HFE6052 within the scope of his employment of the Defendant, **THE CITY OF NEW YORK**.

36. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, maintained the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **THE CITY OF NEW YORK**.

37. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, managed the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **THE CITY OF NEW YORK**.

38. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, controlled the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **THE CITY OF NEW YORK**.

39. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, was employed by Defendant, **THE CITY OF NEW YORK**

COMPTROLLER.

40. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, operated the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **THE CITY OF NEW YORK COMPTROLLER**.

41. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, operated the motor vehicle bearing New York State registration number HFE6052 within the scope of his employment of the Defendant, **THE CITY OF NEW YORK COMPTROLLER**.

42. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, maintained the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **THE CITY OF NEW YORK COMPTROLLER**.

43. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, managed the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **THE CITY OF NEW YORK COMPTROLLER**.

44. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, controlled the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **THE CITY OF NEW YORK COMPTROLLER**.

45. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, was employed by Defendant, **NEW YORK CITY POLICE**.

DEPARTMENT.

46. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, operated the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

47. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, operated the motor vehicle bearing New York State registration number HFE6052 within the scope of his employment of the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

48. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, maintained the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

49. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, managed the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

50. That at all times hereinafter alleged, and upon information and belief, the Defendant, **ORLANDO R. CHECO**, controlled the motor vehicle bearing New York State registration number HFE6052 with knowledge, permission and consent of Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

51. That at all times hereinafter mentioned, East 2nd Street at or near 1st Avenue, County, City and State of New York, was and still is a public highway used extensively by the public in general.

52. That on November 1, 2023, at the aforesaid location, the aforesaid motor vehicles came in contact with another.

53. The aforesaid accident and the injuries resulting therefrom were due to the careless, reckless and negligent manner in which the Defendants owned, operated, managed, maintained and controlled the motor vehicles, without the Plaintiff in any way contributing thereto.

54. That by reason of the foregoing and the negligence of the Defendants, the Plaintiff, **ABDOU SALAM SAVADOGO**, was severely injured, bruised and wounded, suffered, still suffers and will continue to suffer for some time physical pain and bodily injuries and became sick, sore, lame and disabled.

55. That by reason of the foregoing, the Plaintiff, **ABDOU SALAM SAVADOGO**, was compelled to and did necessarily require medical aid and attention, and did necessarily pay and become liable therefore for medicines and upon information and belief, the Plaintiff will necessarily incur similar expenses.

56. That by reason of the foregoing, the Plaintiff, **ABDOU SALAM SAVADOGO**, has been unable to attend to his usual occupation in the manner required.

57. That by reason of the wrongful, negligent and unlawful actions of the Defendants, as aforesaid, the Plaintiff, **ABDOU SALAM SAVADOGO**, sustained serious injuries as defined in Section 5102 (d) of the Insurance Law of the State of New York, and has sustained economic loss greater than basic economic loss as defined in Section 5102 of the said Insurance Law.

58. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

59. That as a result of the foregoing, the Plaintiff, **ABDOU SALAM SAVADOGO**, has been damaged in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR THE SECOND CAUSE OF ACTION- CONSTITUTIONAL RIGHTS

60. Plaintiff repeats and re-alleges each and every allegation contained in paragraphs 1 through 59 inclusive, with the same force and effect as though more fully set forth at length herein.

61. That as a result of the Defendants' concerted and unlawful use of excessive force and assault and battery of the Plaintiff, **ABDOU SALAM SAVADOGO**, the Plaintiff was deprived of his liberty without due process of law in violation of his rights under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of his statutory rights under 42 U.S.C. §1983; AND The Plaintiff was further deprived of his right to due process under the Fifth and Fourteenth Amendments to the Constitution of the United States and in violation of his statutory rights under 42 U.S.C. §1983 by the Defendants' use of excessive physical force.

62. That the Defendants' violations of Plaintiff's constitutional and civil rights and concerted, unlawful use of excessive force, assault and battery of the Plaintiff, **ABDOU SALAM SAVADOGO**, was perpetrated by the Defendants pursuant to and under color of law.

63. That the aforementioned acts, omissions and conduct of the Defendants, set forth above in paragraphs 48 through 49 inclusive, resulted in the Plaintiff suffering physical injury, impairment of health, severe emotional distress, impairment of reputation and character, loss of income, deprivations and violations of his Fourth, Fifth and Fourteenth Amendment rights as well as rights secured and guaranteed by 42 U.S.C. §1983 and the laws of the United States.

64. That by reason of the foregoing, the Plaintiff, **ABDOU SALAM SAVADOGO**, has been unable to attend to his usual occupation in the manner required.

65. One or more of the exceptions of §1602 of the Civil Practice Laws and Rules applies to the within action.

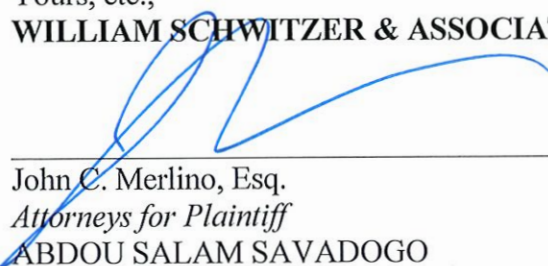
66. That as a result of the foregoing, the Plaintiff, **ABDOU SALAM SAVADOGO**, has been

damaged in a sum which exceeds the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff, ABDOU SALAM SAVADOGO, demands judgment against the Defendants for the First Cause of Action in excess of the jurisdictional amounts of the lower Courts, for the Second Cause of Action in excess of the jurisdictional amounts of the lower Courts.

Dated: New York, New York
November 7, 2024

Yours, etc.,
WILLIAM SCHWITZER & ASSOCIATES, P.C.



John C. Merlino, Esq.
Attorneys for Plaintiff
ABDOU SALAM SAVADOGO
820 Second Avenue, 10th Floor
New York, New York 10017
(212) 683-3800
File No.: SMSC24-001

ATTORNEY'S VERIFICATION

I, John C. Merlino, Esq., an attorney duly admitted to practice in the Courts of the State of New York, hereby affirms the following to be true under the penalty of perjury:

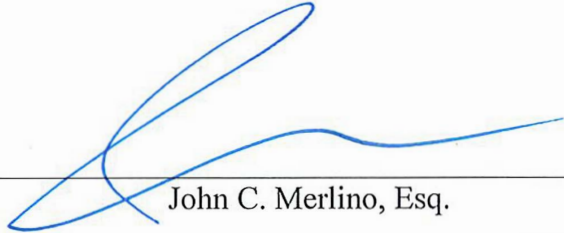
That I am associated with the firm WILLIAM SCHWITZER & ASSOCIATES, P.C., the attorneys for the Plaintiff in the within action and as such, I am fully familiar with the facts and circumstances surrounding this matter based upon my review of the contents of the file maintained by this office.

That I have read the foregoing **SUMMONS AND COMPLAINT** and know the contents thereof; that the same is true to my own knowledge except as to the matters therein stated to be alleged upon information and belief; and, as to those matters, I believe them to be true.

That the reason this verification is made by your affiant and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is maintained.

That the grounds for your affiant's belief as to all matters not stated upon my own knowledge are as follows: facts, investigations, reports, records, and documents contained in Plaintiff's file maintained by your affiant's office.

Dated: New York, New York
November 7, 2024



John C. Merlino, Esq.

Index No.:

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

ABDOU SALAM SAVADOGO,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE CITY OF NEW YORK COMPTROLLER, NEW
YORK CITY POLICE DEPARTMENT and ORLANDO R. CHECO,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

WILLIAM SCHWITZER & ASSOCIATES, P.C.

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